



SPONSOR: Rep. Lambert & Sen. Poore

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 222

AN ACT TO AMEND TITLE 3 OF THE DELAWARE CODE RELATING TO NUTRIENT MANAGEMENT.

1 WHEREAS, the Delaware General Assembly seeks to modernize penalties imposed on agricultural polluters; and

2 WHEREAS, the Delaware Nutrient Management Commission is charged with adequately holding the regulated
3 community accountable for identified cases of chronic violations of the State Nutrient Management Program (SNMP).

4 NOW, THEREFORE:

5 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

6 Section 1. Amend § 2244, Title 3 of the Delaware Code by making deletions as shown by strike through and
7 insertions as shown by underline as follows:

8 § 2244. Certification; applications; suspension, modification; revocation.

9 (a) The Commission may, after notice and opportunity for a hearing, suspend, revoke, or modify any certificate
10 granted under this chapter or fine any person against whom a complaint has been brought, or both, if the Commission finds
11 the person certified has been found guilty of any violation of this chapter or Commission regulations.

12 (b) The Commission may impose a fine of not less than ~~\$25~~ \$125 nor more than ~~\$1,000~~ \$5,000 for each violation.
13 Each day of continued violation may be considered as a separate violation up to a limit of \$10,000.

14 (c) Any fines collected by the Department of Agriculture under this chapter shall be appropriated to the
15 Department for use in assisting persons in achieving compliance or to demonstrate the application of research that may be
16 of substantial benefit to many individuals seeking compliance with this chapter.

17 (d) All decisions of the Commission relating to suspension, modification or revocation of a certificate shall be
18 final and conclusive unless the person whose certificate was suspended, modified or revoked appeals according to the
19 provisions of § 2263 of this title.

SYNOPSIS

This Act updates the fine structure for violations of the State Nutrient Management Program. Under this Act, the Commission may impose a fine of not less than \$125 nor more than \$5,000 for each violation. The current fine may be not less than \$25 nor more than \$1,000 for each violation.